

Document Revision History

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Disciplinary Policy – Apar (India)

Version: 1.1

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1. Purpose

The purpose of the disciplinary policy and procedure is to set and maintain standards of conduct within the organization, and in doing so, ensure that all employees are treated fairly and consistently. It is designed to help and encourage all employees to achieve and maintain satisfactory standards of conduct.

It is a deterrent towards non-compliance by employees to organization policies. It identifies the type of offence which would result in disciplinary action being taken, what that action would be and what further action would result if there is no improvement or a recurrence takes place. It also identifies who has authority to take disciplinary action and aims to ensure that employees are protected against unjustifiable or inconsistent disciplinary action.

2. Scope

This document is applicable for all the employees assigned to any engagement in the organization.

3. Abbreviations & Definitions

HR – Human Resources

4. Roles and Responsibility

Role	Responsibility
Line Manager	- Responsible for reporting any major/ gross misconduct by the employee to Delivery/Function Heads and HR with necessary case details. - Responsible for taking action or sanction less than dismissal as per Appendix B - In case of minor misconduct or unsatisfactory performance, Line Manager may have quiet word of caution or advice and encouragement in order to improve performance. - Responsible to prepare case study of the serious misconducts for reporting i.e. nature and gravity of the breach and its impact on business, whether or not this is a first or repeat offence, whether or not the violator was properly trained and other factors as required. - Responsible for reporting incident for the information security breaches occurred
Delivery/ Function Heads	- Responsible for taking disciplinary action or sanction for both less than dismissal and formal dismissal as per Appendix B - Responsible for the hearing of Appeals for the action or sanction less than dismissal
HR	- Responsible to identify and report nature of the misconduct i.e., Minor, Major or Gross misconduct - HR will ensure no disciplinary action will be taken until there has been a full investigation into any alleged incident.

	- Gather necessary information and keep written records during the disciplinary process which will include the complaint against the employee, notes taken during the hearings and appeals, findings and actions taken, details of the appeal and any other information relevant to the process. - Responsible for maintaining record of the misconduct in personnel files for the specified period. - Will take all reasonable steps to ensure that confidentiality is maintained throughout the process.
Steering Committee	- Panel members for hearing the Appeals against dismissal - Responsible for addressing any conflicts to the policy - Comprises of BU Head, HR Head & HR Manager

5. Policy Authority

The owner of this policy is the Regional Manager HR. Recommendations for changes to the policy can be made at any point of time by joint review meeting of the Policy Owner & Policy Approver. Any Interpretation conflict should be addressed to the Steering Committee.

6. Tasks

6.1 General Principles

Informal Resolution – Line Managers are responsible for addressing misconduct and behavior issues as early as possible. Where appropriate, steps will be taken to resolve issues on an informal basis without recourse to the formal procedure.

Investigation – Before disciplinary action is taken, an investigation will be undertaken where the manager with authority to hear the case considers it appropriate and validates the occurrence of the misconduct.

Nature of allegations – The employee against whom an allegation has been made will be advised in writing of the nature of the allegations made against him/her and will be given the opportunity to state his/her case before any decision is made to take disciplinary action.

First breach of discipline - Dismissal will not be a sanctioned for a first breach of discipline except in

Confidentiality – All parties involved in these procedures must ensure that they maintain, as appropriate, the confidentiality of the process within and outside the organization.

Involvement of Human Resources – Human Resources authorized member will be consulted and will advise on investigation and the formal procedure. An HR representative will normally be present in formal hearings.

Appeals against Sanctions including dismissal - Sanctions or warnings issued as a result of procedures will remain in force pending the outcome of any appeal.

Timescales - Whilst every endeavor will be made to comply with timescales, due to the complexity and or specific circumstances of cases, timescales may be extended. In such circumstances the employee will be advised of the reasons for any delay.

6.2 Informal Procedure

6.2.1 It is part of the normal supervisory process that line managers bring to the attention of the employees the standards required and any failure to meet those standards.

6.2.2 Cases of minor misconduct, as shown in Appendix A will be dealt with by the employee's line manager informally and without delay. The manager must speak to the employee, in private and should encourage them to conduct themselves in accordance with the required standards.

6.2.3 The purpose of these discussions is to ensure that the employee understands the nature of the concerns, expectations of improvements in conduct and where appropriate timescales and the nature of any support available.

6.2.4 It is advisable to confirm the outcomes of any discussions in writing to the employee. The line manager should retain any note of these informal discussions or meetings.

6.2.5 Following a satisfactory outcome to the use of the informal procedure, the matter will be considered resolved.

6.2.6 However, where an issue has been discussed with an employee informally and if:

- the issue has not been resolved and the problem persists
- the required improvements in conduct are not achieved
- further information becomes available during discussions which make the matter sufficiently serious

The formal procedure will be invoked.

6.3 Formal Procedure

6.3.1 Where the informal process has not led to improved conduct, or where the alleged misconduct is of such seriousness that the manager considers informal action to be inappropriate, formal action will be initiated. Examples of misconduct are shown in Appendix A.

6.3.2 An investigation of the facts will be conducted as outlined in section 9 to determine whether there is a disciplinary case to answer.

6.3.3 Where an investigation indicates that there is an act of misconduct, the employee will be required to attend a formal disciplinary hearing at which s/he will be given the opportunity to respond and state his/her case.

6.3.4 Authority to take formal disciplinary action.

Appendix B details employees who are authorized to undertake disciplinary action in accordance with this procedure and following consultation with Human Resources.

6.4 Investigation

6.4.1 Before a disciplinary hearing is convened, there will normally be an investigation into the circumstances of the alleged misconduct. The purpose of the investigation is to:

- establish the nature and gravity of the allegations
- Its impact on business, whether or not this is a first or repeat offence, whether or not the violator was properly trained, and other factors as required.
- gather evidence to enable a decision to be taken on whether there is a disciplinary case to answer
- consider if the matter should proceed to a formal hearing

6.4.2 The employee will be informed promptly of any allegation and that an investigation to establish the facts will be undertaken. The investigation must be concluded as soon as reasonably possible whilst allowing sufficient time to interview relevant parties. Employees must be kept informed if there is any unexpected delay in the process.

6.4.3 The employee's line manager may appoint an '**investigatory manager**' not immediately involved in the case to investigate the facts of the situation. HR representative will assist in ensuring that the matters are handled fairly, reasonably and in compliance with current legislation and procedure.

6.4.4 If there is no disagreement concerning the facts of the case because the employee admits misconduct, an investigation may not be necessary before a disciplinary hearing is arranged. However, in cases where misconduct is not admitted or if there are conflicting views or evidence, further investigation will usually be appropriate before a decision is taken to proceed to a formal hearing.

6.4.5 **Investigatory Interviews** are part of the process to establish whether disciplinary action is warranted. As part of the investigation, the employee who is the subject of the allegation will be asked to attend an investigatory interview. The employee must inform the investigating manager of any facts or witnesses that s/he feels are relevant to the case.

6.4.6 The outcomes of an investigation may be:

- There is no case to answer and therefore no disciplinary action is taken
- The matter is dealt with informally, if appropriate with support and or training to resolve the matter.
- Recommendation that there is a disciplinary case to answer, and a disciplinary hearing should be arranged

6.5 Disciplinary Hearing

6.5.1 Disciplinary Hearing – Preparation and conduct

If following an investigation, there is a recommendation that there is a disciplinary case to answer, the employee will normally be given five days' notice and invited to attend a disciplinary hearing. The employee will be provided with details of the allegation(s) and an indication as to whether the alleged misconduct is considered as potentially a serious/gross misconduct case and therefore whether a sanction less than or up to dismissal may be considered. The employee will be invited to make any written submissions or bring forward witnesses. Prior to the hearing, any documentation that will be referred to in the hearing will be made available to the employee.

6.5.1.1 The employee will be given an opportunity to present his/her case, question witnesses and raise any issues s/he wishes to have considered. The manager conducting and hearing the case will be able to question those involved in the case.

6.5.1.2 The manager conducting and hearing the case will consider all representations then decide if on the balance of probabilities, the allegation(s) are proven and if so what level of disciplinary sanction is appropriate.

6.5.1.3 The decision may be given verbally at the hearing and will in any event be conveyed or confirmed in writing within five working days of the hearing. The correspondence will also notify the individual employee of his/her right to appeal against any sanction. In the event that the decision is taken to dismiss the employee, the letter will include the reasons for dismissal and the date that his/her employment will terminate, together with details of any notice arrangements.

6.6 Formal Levels of Disciplinary Actions

There are three levels in the formal disciplinary procedure with various sanctions dependent upon the gravity of the case and/or the on-going nature of the misconduct.

6.6.1 Level One Formal - Written warning

6.6.1.1 This is usually given if there has been either a minor breach in conduct which remains unresolved by informal action, or a first serious breach of discipline.

6.6.1.2 The disciplinary sanction of a written warning given under level one will be retained on the employee's personal file, subject to satisfactory conduct and/or improvements for twelve months from the date the decision is confirmed.

6.6.2 Level Two Formal - Final written warning

6.6.2.1 If the employee does not meet the required standard of conduct set out in level one or commits any other act of misconduct during the timescale of an existing warning, a further formal disciplinary hearing may be convened under level two of this procedure.

6.6.2.2 In some circumstances, where an alleged misconduct is sufficiently serious, it may be appropriate to progress straight to level two of this procedure.

6.6.2.3 The disciplinary hearing will be conducted following an investigation if appropriate and as described in section 10.1.

6.6.2.4 The disciplinary sanction of a final written warning given under level two will be retained on the employee's personal file, subject to satisfactory conduct and or improvements for twenty-four months from the date the decision is confirmed.

6.6.3 Level Three Formal – Dismissal

6.6.3.1 If allegations are raised which are so serious as to constitute gross misconduct, such as those in Appendix A, it will be appropriate to consider taking formal action under level three of this procedure.

6.6.3.2 It may also be appropriate to move to level three if an employee does not meet the required standard of conduct set out in the final written warning given under level two of this procedure or commits any other act of misconduct during the timescale of an existing warning.

6.6.3.3 If an investigation indicates that an act of further or gross misconduct may have occurred, the employee will be required to attend a formal disciplinary hearing.

6.6.3.4 The letter requiring attendance at the formal disciplinary hearing will include a statement of the alleged misconduct and warn the employee that one consequence of the hearing may be the termination of his/her employment with or without notice.

6.6.3.5 The manager conducting, and hearing case will consider all representations then decide if on the balance of probabilities, the allegation(s) are proved and if so what level of disciplinary sanction, including and up to dismissal, is appropriate. On the basis of the information presented that manager may decide:

- To dismiss the employee (without notice in the case of gross misconduct)
- That there are insufficient grounds to dismiss the employee under this procedure;
- On the imposition, extension or renewal of a warning or final written warning issued under this procedure;
- That matters should be considered under an alternative procedure.

The above list is not exhaustive, and the outcome may be varied according to the circumstances of the case.

6.7 Appeals

6.7.1 Appeals against warnings, sanctions, or action less than dismissal

6.7.1.1 The employee has the right to appeal against a decision to issue a warning or sanction, less than dismissal, under this procedure. Any appeal should be sent to the Head of HR within five working days of the employee receiving the written decision. The appeal must state the grounds for appeal.

6.7.1.2 The appeal will be heard by Delivery/ Function Head and HR authorized representative. The appeal hearing will be a review of the decision to issue a sanction under the disciplinary procedure.

6.7.1.3 The decision may be given verbally at the appeal hearing and will in any event be conveyed or confirmed in writing within ten working days of the hearing.

6.7.1.4 The decision following the appeal will be final and there will be no further internal right of appeal.

6.7.2 Appeals against Dismissal

6.7.2.1 The employee has the right of appeal against a decision to terminate his/her employment under this procedure. Any appeal should be sent to the Head of HR within five working days of the employee receiving the written decision to dismiss. The appeal must state the grounds for appeal.

6.7.2.2 The appeal will be heard by an appeal panel consisting of members from Steering Committee. The appeal panel will have had no prior involvement with the case and the appeal hearing will be a review of the decision to dismiss.

6.7.2.3 The decision may be given verbally at the appeal hearing and will in any event be conveyed or confirmed in writing within ten working days of the hearing.

6.7.2.4 The decision following the appeal will be final and there will be no further internal right of appeal.

This procedure will be reviewed periodically to ensure compliance with changes in employment law and equality and diversity legislation.

7. Exception Handling

Any exception to this policy will be approved by Steering Committee.

8. Exhibits:

Exhibit Number	Exhibit Title
1	Appendix A – Types of Misconduct
2	Appendix B – Levels of Authority to take disciplinary action

Appendix A

Types of Misconduct

The following list shows type of rules/offences categorized for each level of misconduct. This is not an exhaustive list and management reserves the right to decide how any other misconduct will be categorized:

A MINOR MISCONDUCT

- Absenteeism/unauthorized absence
- Careless work and poor effort at work leading to poor quality of deliverables to our clients
- Minor breach of safety/hygiene/security rules
- Extended tea and meal breaks impacting outcome of assigned deliverables
- Failure to maintain a tidy and safe working environment
- Misuse of office assets
- Excessive time away from the job without medical reasons
- Desk / workstation not kept clear/clean of documents particularly sensitive in nature that could lead to a data privacy breach
- unacceptable attire that is offensive or not in line with smart business casuals

B MAJOR/ GROSS MISCONDUCT

- Information Security breach
- Theft
- Non-compliance to Acceptable Use policy
- Unacceptable use of social media
- Physically violent behavior
- Refusal to carry out a reasonable work instruction amounting to insubordination
- Deliberately ignoring safety/hygiene/security rules and thereby endangering one's own or another's physical well-being or safety
- Obscene behavior
- Intoxication induced by alcohol or drugs
- Fraud
- Disclosing confidential business information to a third party
- Falsification of records
- Gross misuse of company's internet or e-mail system
- Neglect or willful damage leading to or loss of employer's, customer's, or other employee's property/ equipment/tools.
- Smoking in areas marked as non-smoking
- Consuming intoxicants during working hours or bringing intoxicants into the premises without permission
- Repetitive forced entry into any unauthorized areas

unacceptable behavior causing customer dissatisfaction

- Use of foul language
- Gambling on the premises
- Harassment of any kind to any fellow colleague
- Passing derogatory comments about any employee's personal/religious choice/customs
- Promoting any political / religious agenda at the workplace
- Hampering high performance work culture promotion at the workplace
- Non-submission of IT assets in case on leave for more than 5 days in one go
- Any repetitive Category A misconduct

Appendix B

Illustrative levels of authority to take disciplinary action:

Level of disciplinary action	Delivery/ Function Head IS line manager	Delivery/ Function Head IS NOT line manager
Action or sanction less than dismissal Note: this includes Informal, Written warning (level 1), Final written warning (level 2)	Delivery/ Function Head and HR Manager	Line Manager and HR Manager
Formal dismissal	Delivery/ Function Head and HR Manager	Delivery/ Function Head and HR Manager
Appeal for sanction less than dismissal	Delivery/ Function Head and HR Manager	Delivery/ Function Head and HR Manager
Appeal for dismissal	Steering Committee	Steering Committee